

M/s S.S. Cold Storage v. Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 31 July 2012 · Writ-C No. 36484 of 2012 · **Interim stay on additional-security demand; listed with connected writ**

HEADNOTE

Following an existing interim order in a similar additional-security writ, the Division Bench restrained Dakshinanchal Vidyut Vitran Nigam until further orders from demanding additional security under para 4.20 of the U.P. Electricity Supply Code, 2005, connected the petition with W.P. (C) No. 51884 of 2009, and left the challenge to the 9 May 2012 demand notice undecided.

FACTUAL SUMMARY

M/s S.S. Cold Storage and another filed a writ against Dakshinanchal Vidyut Vitran Nigam seeking to quash a demand notice dated 9 May 2012 by which additional security was asked under para 4.20 of the U.P. Electricity Supply Code, 2005. The petitioners cited an interim order dated 7 October 2009 in W.P. No. 51844 of 2009 (M/s Supreme Ceramics Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.). The respondents stated that identical questions were pending in several matters. The Court directed listing with W.P. (C) No. 51884 of 2009.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security — interlocutory restraint

HOLDING

Without prejudice to the parties' rights and contentions, and following the interim order already granted in W.P. No. 51844 of 2009, the respondents are restrained until further orders from demanding additional security from the petitioners under para 4.20 of the U.P. Electricity Supply Code, 2005. The writ is connected and listed with W.P. (C) No. 51884 of 2009. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 9 MAY 2012 ADDITIONAL-SECURITY DEMAND UNDER PARA 4.20

Stay granted without prejudice; merits of the demand notice not decided. ¶ 1-2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd. W.P. No. 51844 of 2009, order dated 7.10.2009			court	Referred